

File No.: EXP202306257 (RR/00640/2023)

IMI Reference: A56ID 438120 – A60DD 448732 – Case Register - 448157

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by VACACIONES EDREAMS, S.L. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated July 26, 2023, and based on the following FACTS

FIRST: On July 26, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202306257, by virtue of which VACACIONES EDREAMS, S.L., was ordered, due to an infringement of Article 44 of the GDPR, classified under Article 83.5 of the GDPR, to adapt the data processing activity carried out through the Google Analytics service to the provisions of Articles 44 and following of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, particularly by ceasing the international transfer of data until it is proven that the Google Analytics service complies with the aforementioned provisions of the Regulation. This resolution, which was notified to the appellant on July 31, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (LOPDGDD), and supplementarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00349/2022, the following was recorded:

FIRST: A.A.A. (the complainant) on 08/14/2020 at 4:44:00 AM, visited the website ***URL.1 while connected to the Google account associated with the address ***EMAIL.1 belonging to the complainant.

Through HTML code embedded in the webpage “***URL.1”, personal data (at least, the IP address and "cookies") of the complainant have been collected and transferred to Google LLC, 1600 Amphitheatre Parkway, Mountain View, CA 94043, USA, through the Google Analytics and Google Ads services contracted by the portal manager, EDREAMS.

When the complainant visited the aforementioned webpage, the following requests were made:

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1. A GET request to the URL ***URL.2, where cookies and fields of the request include, among others, the following values:

Field

Value

User-Agent

(...)

_ga

(...)

__gads

(...)

_gid

(...)

2. A GET request to the URL ***URL.3, where cookies and fields of the request include, among others, the following values:

Field

Value

User-Agent

(...)

NID

(...)

accept-language

(...)

u1

(...)

3. A POST request to the URL ***URL.4 with the following header and parameters encoded in the payload, among others:

Header

(...)

Field

Value

User-Agent

(...)

gjid

(...)

cid

(...)

tid

(...)

_gid

(...)

accept-language

(...)

SECOND: According to its response dated 12/10/2020, in response to a request from this Agency, EDREAMS has embedded the code of the Google Analytics tool on its website ***URL.1 and is currently still embedding it.

THIRD: According to its response dated 12/10/2020, in response to a request from this Agency, the statistics from Google Analytics were collected from interested parties in the Member States where EDREAMS concentrates its activity;

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Germany, Austria, Czech Republic, Denmark, Spain, France, Finland, Greece, Hungary, Italy, Netherlands, Poland, Portugal, Romania, Sweden.

FOURTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, the data from the Google Analytics tool is primarily accessed from the EDREAMS offices in Spain, led by the head of the Analytics team, but also from France and Germany by the management team of each country.

FIFTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, EDREAMS only communicates the data collected through Google Analytics to GOOGLE. And in the event that the user provides their consent for advertising cookies and does not block cookies in their

browser, the recipients will also include the tools Google Ad Manager and Google Ads.

SIXTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, the legal basis for incorporating the Tool is the dual legitimate interest of understanding how the EDREAMS website is used and providing a better service to users.

SEVENTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, the initial legal basis for the international transfer of data by EDREAMS was based on the Privacy Shield Certificate until its invalidation and the standard data protection clauses adopted by the Commission ("Standard Contractual Clauses," or "SCC"), since August 2020, along with the appropriate supplementary measures provided by Google.

EIGHTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, EDREAMS did not have the option to transfer or not transfer data outside the EEA when using Google Analytics, as the configuration of the tool does not allow it.

NINTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, EDREAMS processes the browsing and behavior data of customers on its websites in a pseudonymized manner using a cookie identifier "Cookie ID," which allows it to analyze how the user accesses and interacts with its website through their device and its internal identifier to analyze results at a statistical level.

The "Booking ID" (internal booking identifier) is used by EDREAMS to identify the sales conversion rate. Likewise, the "Checked Booking ID" allows them to know how many people have entered the "Manage my booking" section and have selected to cancel or modify it.

The "Session, Session or eDOuser ID" allow minimizing the amount of data that EDREAMS has in Google Analytics and are used to resolve technical issues.

For all these reasons, the data is limited to how users, through their devices, interact with the EDREAMS website (internal browsing data of the website).

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In no case are special categories of data defined in Article 9.1 of the GDPR processed, nor are data from particularly vulnerable persons processed. Non-pseudonymized data is also not processed.

TENTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, GOOGLE may automatically become aware of the personal data of users, as the information is stored on its own platform. The code of the Google Analytics tool is directly integrated when the user accesses the EDREAMS website. Any purpose that deviates from analyzing the use of the aforementioned website, such as advertising, will not be activated until prior consent from the user is obtained. That is, in the event that the user does not provide consent, Google Analytics will not connect with Google Ad Manager and Google Ads in any way.

ELEVENTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, the data is stored for a period of 26 months, which is the period that allows them to make comparisons versus the previous year.

TWELFTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, the data was stored according to clause 10.3 of the current document "Conditions for the processing of Google Ads data," whose terms or configuration did not allow changes by EDREAMS.

THIRTEENTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, of the five purposes for sharing data with GOOGLE, only EDREAMS had activated the technical service of GOOGLE so that they could resolve any incidents, without GOOGLE being able to use it for other purposes.

FOURTEENTH: As stated in your response dated 10/12/2020, in response to a request from this Agency, the cookies are not refreshed even if the user revisits the website, so the duration of 13 months is static.

FIFTEENTH: As stated in your response dated 10/12/2020, in response to a request from this Agency,

apart from the service of the Google Analytics tool itself, the data is connected with other services when prior consent is obtained with:

Google Ads Linking: which links the Google Ads account to Analytics allowing to see the complete customer cycle, from how users interact with marketing to how the objectives set on the website are ultimately achieved.

AdSense Linking: which allows viewing AdSense data in Analytics, as well as key Analytics metrics on the AdSense homepage cards.

Google Ad Manager Linking: once the Ad Manager and Analytics accounts are linked, the Ad Manager metrics will be available in Analytics.

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Optimize and Tag Manager linking: Google Optimize allows testing and customizing the website using data from Google Analytics for measurement and targeting.

Ad Exchange Linking: which allows receiving data from the Ad Exchange within the Analytics account regarding advertising statistical data.

Campaign Manager 360 Linking: which enables the import to Analytics 360 of statistical data from Campaign Manager 360 and cost data.

SIXTEENTH: As of 10/12/2020, EDREAMS had the following services linked with the Google Analytics tool:

a.

“AdSense. Actively linked. Receiving information. AdSense helps you earn money by displaying ads on your website that are relevant to your audience. [...]”

b.

“Google Ads. Actively linked. Sending and receiving information. Google Ads is an online advertising program that helps you reach your customers and grow your business, improves your ad campaigns, and analyzes the complete customer journey—from clicking on the ad to conversion.”

c.

“Ad Exchange. Actively linked. Receiving information. Ad Exchange helps you earn money by displaying ads on your website that are relevant to your audience. It correlates key metrics from Ad Exchange, such as eCPM and unit impressions, with more data from Analytics.”

d.

“Campaign Manager 360. Actively linked. Receiving information. Campaign Manager 360 is an ad management and publishing solution that helps agencies and advertisers manage the total reach of digital advertising programs. This integration allows Google Analytics 360 customers to view and analyze Campaign Manager 360 data in Analytics.”

e.

“Google Optimize and Tag Manager for website and app optimization. Actively linked. Receiving information. Google Optimize allows you to test and customize your website using Google Analytics for measurement and personalization. [...]”

f.

“Search Console. Actively linked. Receiving information. Search Console can help you understand how users find your website through Google searches, identify ways to attract more attention to your website, and prioritize development efforts.”

SEVENTEENTH: As of 10/12/2020, EDREAMS had the following configuration of the Google Analytics account in the “Data Sharing Settings” section:

a.

“Google product & services.” Not selected.

b.

“Benchmarking.” Not selected.

c.

“Technical Support.” Selected.

d.

“Account specialists.” Not selected.

e.

“Give all Google sales experts access to your data and account so you can get more in-depth analysis, insights, and recommendations across Google products.” Not selected.

26 months was the retention period, with the minimum selectable period of 14 months and the maximum of 50 months. There was also the selectable option not to automatically delete data after a specific period, but it was not selected.

EIGHTEENTH: As of 10/12/2020, GOOGLE IRELAND LTD. acted as the data processor.

NINETEENTH: As of 10/12/2020, in the adhesion contract proposed by GOOGLE “Conditions for the processing of Google Ads data,” from the link <https://privacy.google.com/businesses/processorterms/> it stated:

“[...]

2.5 In the event that these Conditions for data processing are translated into any other language and there is any discrepancy between the English version and the translated text, the English version shall apply.

[...]”

TWENTIETH: According to its response dated 10/12/2020, in response to a request from this Agency, from the very day the CJEU ruling C-311/18 was published, EDREAMS considered that they should update their contracting by eliminating the legal basis of the Privacy Shield and including the Standard Contractual Clauses, which should analyze the risks for the data subjects taking into account the type of personal data processed, and that they should review the additional measures beyond those already contained in the Standard Contractual Clauses. Regarding the Privacy Shield, GOOGLE proposed its new version with changes to the “Conditions for the processing of Google Ads data” within a month (August 16, 2020). The transfer of the IP of the website visitor was eliminated.

TWENTY-FIRST: According to its response dated 10/12/2020, in response to a request from this Agency, in an email sent between EDREAMS and GOOGLE on September 24, GOOGLE stated that it had implemented the following additional safeguards to ensure the protection of data in Google Analytics:

i.

Google Analytics ensures the secure transmission of its Javascript libraries and measurement data through the HTTP Strict Transport Security (HSTS) protocol. ***URL.5.

ii.

IP anonymization. GOOGLE offered the option to anonymize IPs. If this option is activated, IPs are deleted immediately after collection and are never stored on disk. This measure was implemented from eDreams. ***URL.6

iii.

Google has obtained ISO 27001 certification in relation to Google Analytics.

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iv.

According to GOOGLE, they have a team that carefully reviews each user data request they receive from government authorities. Transparency report at ***URL.7 and their policies at ***URL.8.

v.

Encryption to protect personal data against interception in transit.

TWENTY-SECOND: As stated in their response dated 10/12/2020, in response to a request from this Agency, the legal basis for the international transfer of data is based on the Privacy Shield until its invalidation and the standard contractual clauses adopted by the Commission since August 2020, along with the appropriate supplementary measures provided by GOOGLE. The standard contractual

clauses can be found at ***URL.9.

TWENTY-THIRD: As stated in their response dated 10/12/2020, in response to a request from this Agency, in the event that any U.S. security agency wishes to gain access to the data collected by EDREAMS in the Google Analytics Tool, they would first not be able to do so directly, without sending a request to Google, as such data is encrypted. Furthermore, Google has internal processes to challenge any request from the U.S. administration that it considers disproportionate or incompatible with European data protection regulations or the Standard Contractual Clauses.

However, in the hypothetical case that the corresponding U.S. agency were to gain access to the data, it would not be able to know which specific person is behind the data collected in the Tool through the identifiers, as only personal data that would allow for direct identification is protected by EDREAMS and stored within the European Economic Area.

TWENTY-FOURTH: As stated in their response dated 10/12/2020, in response to a request from this Agency, "EO 12333 (...) organizes and assigns functions and responsibilities to the intelligence community of the United States and articulates high-level principles that all intelligence activities must comply with. The specific intelligence activities conducted under EO NO 12333 are subject to more specific application procedures (which may be classified) that include appropriate safeguards and protections for that type of intelligence activity. EO 12333 primarily governs intelligence activities conducted outside the United States. It is understood that EO 12333 allows the United States to conduct electronic surveillance outside the United States in accordance with U.S. legal requirements; it does not authorize electronic surveillance within the United States nor impose requirements on service providers inside or outside the United States.

Article 702 of the FISA Amendments Act, which also requires the U.S. Government to minimize the use and dissemination of data, has two components:

Article 702 "Upstream" authorizes U.S. authorities to collect data traveling through the "backbone" infrastructure of the Internet controlled by the

1 Executive Order 12333 of the United States (hereinafter, EO 12333 or EO 123333)

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providers of electronic communication services in the United States (for example, U.S. telecommunications providers). To the extent that any user or customer data traverses the networks subject to collection under Section 702 of Upstream, that data is encrypted in transit as described above.

Section 702 "Downstream" authorizes U.S. authorities to obtain specific data directly from electronic communication service providers. To the extent that Google LLC may be subject to specific requests related to the data of Google customers under Section 702 Downstream, we carefully review each request we receive under FISA regulations in accordance with the guidelines described below to ensure that it meets all applicable legal requirements and Google's policies.

TWENTY-FIFTH: As stated in its response dated 10/12/2020, in response to a request from this Agency, Google states that if any government were to request access to personal data stored in Google's systems in the course of an investigation, a dedicated team of Google lawyers and specially trained personnel will carefully review the request to verify that it is legal, justified, and complies with Google's policies.

Google states that Google's infrastructure is not designed to, and does not provide the U.S. government or any other government with "backdoor" access to customer data or to its servers that store customer data. Furthermore, Google states that it employs robust technical measures (such as encryption) to protect against interception in transit, including attempts at surveillance by government authorities worldwide.

Google states that Google Analytics by default uses the HTTP Strict Transport Security (HSTS) protocol, which instructs browsers that support HTTP over SSL (HTTPS) to use that encryption protocol for all communications between end users, websites, and Google Analytics servers.

Google states that it protects service-to-service communications at the application layer through a mutual authentication and encryption system. Google states that after a handshake protocol between the client and server is completed and the client and server negotiate the necessary shared cryptographic secrets to encrypt and authenticate network traffic, TLS ensures the integrity of RPC (Remote Procedure Call) traffic, enforcing integrity and optional encryption, using the negotiated shared secrets. Google supports multiple protocols to ensure integrity, for example, AES-GMAC (Advanced Encryption Standard) with 128-bit keys. Whenever traffic leaves a physical boundary controlled by or on behalf of Google, for example, in transit across a WAN (Wide Area Network) between data centers, all protocols are automatically updated to provide encryption as well as integrity guarantees.

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Google states that it encrypts Google Analytics data stored at rest in its data centers using the Advanced Encryption Standard. Each data center is protected by six layers of physical security designed to prevent unauthorized access.

The "at rest" encryption in this section refers to the encryption used to protect user data stored on a disk (including solid-state drives) or on backup media. All user data is encrypted at the storage level, generally using the Advanced Encryption Standard (AES256). Data is typically encrypted at multiple levels in Google's production storage stack in the data centers, even at the hardware level, without requiring any action from Google customers.

Google states that it uses common cryptographic libraries that incorporate Google's validated FIPS 140-2 module to implement encryption consistently across all products. The consistent use of common libraries means that only a small team of cryptographers needs to implement and maintain this tightly controlled and reviewed code.

Google states that it builds dedicated servers for its data centers and maintains a leading security team in the industry to ensure that Google's data centers are among the most secure in the world. Google's production data centers are protected by multiple layers of security to prevent any unauthorized access to the data.

Google states that it limits access to personal advertising and analytics data to Google personnel who need it to perform their job.

Google states that customers using Google Analytics can enable IP anonymization to instruct Google to anonymize all IP addresses immediately after they are collected. If enabled, the full IP address is never written to disk, as all anonymization occurs in memory almost instantaneously after receiving the request.

Google states that to the extent that Google Analytics data for measurement transferred by customers is personal data, it would need to be considered as pseudonymous. The Google Analytics Terms of Service mandate that no data be transferred to Google that Google could use or recognize as personally identifiable information (PII).

Google has obtained ISO 27001 certification and will allow customers or a third-party auditor designated by a customer to conduct audits (including inspections) to verify compliance with Google's obligations.

TWENTY-SIXTH: As of February 3, 2021, the link ***URL.1 in the EDREAMS privacy policy stated:

"[...]"

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V. Marketing Activities. We use your information for marketing purposes, among others:

[...]

II. Information we automatically collect when you use our services.

a. Information from your device (for example, your IP address, browser type, Internet service providers, geographical location, technical information about the device, the time and duration of the request and visit, and the method used to send your request to the server). When you visit our websites or our app, we automatically collect certain information from your device. Please note that we may associate this information with your account.

b. Other technical information, for example, how your device has interacted with our website or our app (for example, the pages you have accessed, the links you have clicked, etc.) or other means.

[...]

If you register on our website with a social network account, link the account you use on our website with your social network account, or use any other of our social media features, we may access information about you through that social network provider, in accordance with that provider's policies. The information may include your name, email address, profile picture, gender, friend list, and any other information you authorize us to receive.

Some of this information may be collected through cookies or similar tracking technology. The processing of information collected through cookies is based on different legal grounds (for example, it may be necessary to provide our services based on your consent). For more information, please see our Cookie Policy.

[...]

III. International data transfers. Our servers are located in the European Union. However, to facilitate our global operations (carried out by external service providers), the transmission of personal data to the previously described recipients may include international transfers of personal data to countries whose data protection laws are not as comprehensive as those of countries within the European Union. In these situations, as required, we enter into contractual agreements to ensure that your personal data remains protected in accordance with European standards.

[...]"

TWENTY-SEVENTH: As of February 3, 2021, the URL ***URL.10 stated that (unofficial translation, in English in the original):

"Google Ads Data Processing Terms: Model Contract Clauses

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Standard Contractual Clauses (Processors)

For the transfer of personal data to processors established in third countries that do not ensure an adequate level of data protection

Name of the organization exporting the data: the entity identified as the "Client" in the Data Processing Terms (the data exporter)

and

Name of the organization importing the data: Google LLC, 1600 Amphitheatre Parkway, Mountain View, California 94043 USA (the data importer)

[...]

Clause 4

Obligations of the data exporter

The data exporter agrees and warrants:

(a) that the processing, including the transfer itself, of the personal data has been and will be carried out in accordance with the relevant provisions of applicable data protection legislation (and, where applicable, has been notified to the relevant authorities of the Member State where the data exporter is established) and does not violate the relevant provisions of that State;

(b) that it has instructed and during the duration of the data processing services will instruct the data

importer to process the transferred personal data only on behalf of the data exporter and in accordance with applicable data protection legislation and the Clauses;

(c) that the data importer will provide sufficient guarantees regarding the technical and organizational security measures specified in Appendix 2 of this contract;

(d) that after analyzing the requirements of applicable data protection legislation, the security measures are adequate to protect the personal data against accidental or unlawful destruction or accidental loss, alteration, unauthorized disclosure or access, particularly if the processing involves the transmission of data over a network, and against any other form of unlawful processing, and that these measures ensure a level of security appropriate to the risks presented by the processing and the nature of the data to be protected, taking into account the state of the art and the cost of their implementation;

[...]

Clause 5

Obligations of the data importer

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The data importer agrees and warrants:

(a) to process the personal data only on behalf of the data exporter and in compliance with its instructions and the Clauses; if it is unable to comply for any reason, it agrees to duly inform the data exporter of its inability to comply, in which case the data exporter may suspend the transfer of the data and/or terminate the contract;

(b) that it has no reason to believe that applicable legislation prevents it from complying with the instructions received from the data exporter and its obligations under the contract and that in the event of a change in this legislation that is likely to have a substantial adverse effect on the guarantees and obligations established by the Clauses, it will immediately notify the data exporter of the change as soon as it becomes aware, in which case the data exporter may suspend the transfer of the data and/or terminate the contract;

(c) that it has implemented the technical and organizational security measures specified in Appendix 2 prior to processing the transferred personal data;

(d) that it will immediately notify the data exporter about:

(i) any legally binding request for disclosure of the personal data by a law enforcement authority unless prohibited, such as a prohibition under [...]

[...]

Clause 8

Cooperation with supervisory authorities

1. The data exporter agrees to deposit a copy of this contract with the supervisory authority if such request or deposit is mandatory under applicable data protection legislation.

2. The parties agree that the supervisory authority has the right to carry out an audit of the data importer, and of any sub-processor, that has the same scope and is subject to the same conditions that would apply to an audit of the data exporter under applicable data protection legislation.

[...]

Appendix 2 to the Standard Contractual Clauses

This Appendix forms part of the Clauses.

Description of the technical and organizational security measures implemented by the data importer in accordance with Clauses 4(c) and 5(c) (or attached document/legislation):

The data importer currently complies with the Security Measures set forth in Appendix 2 of the Data Processing Terms at ***URL.

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[...]"

TWENTY-EIGHTH: On February 3, 2021, at the URL ***URL.12, it stated:

"Conditions for the processing of data of Google Ads

Google and the counterparty accepting these Conditions (the "Client") have entered into a contract for the provision of the services of the data processor (with its specific amendments, the "Contract")

These Conditions for the processing of data of Google Ads (the "Data Processing Conditions") are subscribed to by Google and the Client and complement the Contract.

[...]

Introduction

These Data Processing Conditions reflect the agreement of the parties regarding the conditions governing the processing of certain personal data in relation to European data protection legislation and certain non-European data protection legislation.

Definitions and interpretation

[...]

"European or National Laws": as applicable: (a) the laws of the EU or its Member States (if the EU GDPR applies to the processing of the Client's Personal Data); and/or (b) the law of the United Kingdom or a part of the United Kingdom (if the UK GDPR applies to the processing of the Client's Personal Data).

[...]

"Google": the Google Entity that is a party to the Contract.

"Sub-processors of Google's data processors" has the meaning given in Section 11.1 (Consent for engaging the data processor).

"Google Entity": Google LLC (formerly known as Google Inc.), Google Ireland Limited, or any other Affiliate of Google LLC.

[...]

5. Data Processing

5.1 Roles and compliance; authorization.

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5.1.1 Responsibilities of the data processor and the data controller. The parties acknowledge and agree that:

(a) Appendix 1 describes the purpose and details of the processing of the Client's Personal Data;

(b) Google is a data processor of the Client's Personal Data under European data protection legislation;

(c) The Client is a data controller or data processor, as applicable, of the Client's Personal Data under European data protection legislation; and

(d) each party will fulfill its obligations under European data protection legislation regarding the processing of the Client's Personal Data.

[...]

5.2 Client instructions. By entering into these Data Processing Conditions, the Client instructs Google to process the Client's Personal Data only in accordance with applicable law: (a) to provide the services of the data processor and any related technical support; (b) as specified further through the Client's use of the services of the data processor (including the configuration and other functionalities of the services of the data processor) and any related technical support; (c) as documented through the Contract, including these Data Processing Conditions; and (d) as documented in other instructions provided in writing by the Client and acknowledged by Google as constitutive instructions for the

purposes of these Data Processing Conditions.

5.3 Compliance with instructions by Google. Google will comply with the instructions described in Section 5.2 (Client instructions) (including those related to data transfers), unless the European or National Laws to which Google is subject require another processing of personal data by Google, in which case Google will inform the Client (unless any of such laws prohibit Google from doing so for significant public interest reasons).

[...]

10. Data Transfers

10.1 Data storage and processing facilities. The Client agrees that Google, without prejudice to Section 10.2 (Data Transfers), may store and process the Client's Personal Data in any country where Google or any of its data processors maintain facilities.

10.2 Data Transfers. If the storage and/or processing of the Client's Personal Data involves transfers of the Client's Personal Data from the

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EEA, Switzerland or the United Kingdom to any third country that is not subject to an adequacy decision under European data protection legislation:

(a) The customer (as the data exporter) will be deemed to have entered into the Standard Contractual Clauses with Google LLC (as the data importer);

(b) the transfers will be subject to the Standard Contractual Clauses; and

(c) Google will ensure that Google LLC complies with its obligations under such Standard Contractual Clauses with respect to such transfers.

[...]

11. Sub-processors of data processing.

11.1 Consent for the engagement of the Sub-processor of data processing.

The Customer specifically authorizes the engagement of Google's subsidiaries as Sub-processors of data processing ("Google Subsidiary Sub-processors"). Additionally, the Customer generally authorizes the engagement of other third parties as Sub-processors of data processing ("Third-party Sub-processors"). If the Standard Contractual Clauses apply under Section 10.2 (Data Transfers), the above authorizations constitute the Customer's prior written consent for Google LLC to subcontract the processing of the Customer's Personal Data.

[...]

TWENTY-NINTH: On February 3, 2021, the URL ***URL.8 stated:

"[...]

Requests from U.S. government agencies in cases involving national security

In investigations related to national security, the U.S. government may use a National Security Letter (NSL) or one of the authorizations granted under the Foreign Intelligence Surveillance Act (FISA) to compel Google to provide user information.

An NSL does not require judicial authorization and can only be used to compel us to provide limited subscriber information.

FISA orders and authorizations can be used to compel electronic surveillance and the disclosure of stored data, including the content of services such as Gmail, Drive, and Photos."

[...]" (unofficial translation, in English in the original)

THIRTIETH: On February 3, 2021, the URL ***URL.13 stated:

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"[...]"

Basics about personally identifiable information in Google contracts and policies.

In many contracts, terms of service, and policies of Google's advertising and measurement products, reference is made to "personally identifiable information" (PII).

This is a categorization of data different from what the General Data Protection Regulation (GDPR) considers "personal data."

Please note that, although Google does not identify certain data as personally identifiable information, the GDPR may do so, or that such data may be considered personal information under the California Consumer Privacy Act (CCPA), and may be subject to those laws.

"[...]"

Google considers "personally identifiable information" to be information that can be used alone to identify or locate a person accurately, or to contact them directly. Among other data, it includes the following:

- Email addresses
- Postal addresses
- Phone numbers
- Precise locations (e.g., GPS coordinates, except in cases mentioned below)
- Full names (first and last name) or usernames.

"[...]"

Among others, Google does not consider the following data to be personally identifiable information:

- Pseudonymous cookie IDs
- Pseudonymous advertising IDs
- IP addresses
- Other pseudonymous end-user identifiers

For example, if an IP address is sent with an ad request (something that happens with almost all ad requests as a result of Internet protocols), that submission will not violate any prohibition related to sending personally identifiable information to Google.

Please note that, although Google does not identify certain data as personally identifiable information, the GDPR, CCPA, or other privacy laws may consider them personal data or personal information.

"[...]"

THIRTY-FIRST: On February 1, 2021, after visiting the website ***URL.1 while logged into a Google test account, the visit was reflected within the section "Web and App Activity."

THIRTY-SECOND: On February 17, 2021, it was verified, after deleting cookies, that:

1. After logging into a Google account, cookies such as NID, LSID, SID, __Secure-3PSID, __Secure-3PAPISID are installed in the browser.

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they of more than 30 alphanumeric characters where uppercase and lowercase letters are allowed and a validity period from 6 months to several years. Cookies such as _ga, _gid are not installed.

2.

That while logged into the Google account and after visiting ***URL.1, rejecting all its cookies and conducting a search for a rental car from Madrid-Airport to Málaga-Airport with a rental start date of 25/02/2021 and an end date of 28/02/2021, it is verified that cookies _ga, _gid among others are installed. It is also verified that there is an HTTP GET request to the domain google-analytics.com in which the parameters within the request URL include, among others, data such as:

a.

the cookie _ga within the parameter cid and the cookie _gid.

b.

the visited URL (***URL.14) and, among other data, the operation performed within it, encoded as:

"pickupDateTime": "2021-02-25"

"returnDateTime": "2021-02-28"

"pickupName": "%3DMadrid%2520-%2520Aeropuerto"

"returnName": "%3DM%25C3%25A1laga%2520-%2520Aeropuerto"

c.

the parameter "sr".

3.

That in the headers of the HTTP GET there are also data such as "user-agent" and "accept-language".

THIRTY-THIRD: On March 4, 2021, it is verified that, after logging into a Google account, followed by a logout and then browsing ***URL.1 corresponding to a search for flight plus hotel from March 19 to 21 and selecting Madrid as the origin and Málaga as the destination:

1.

There is an HTTP POST request to the domain google-analytics.com where data is sent as payload, among others:

***URL.1"

"sr=1920x1080"

the parameter "cid" which matches the value of the cookie _ga

the parameter _gid which matches the value of the cookie _gid

the departure and return dates, as well as the departure city and the arrival city.

2.

That in the headers of the HTTP POST there are also data such as "user-agent" and

"accept-language".

THIRTY-FOURTH: On June 23, 2021, it is verified that, after logging into a Google account, browsing the website ***URL.1 follows:

1.

There is an HTTP GET request to the domain adservice.google.com where the same value contained in the cookie _ga is sent as parameter u1 as well as the parameters "user-agent" and "accept-language". In this same HTTP GET request, the cookie NID is also sent.

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It is verified, on different dates, that the domain google-analytics.com as well as several IP addresses corresponding to that domain are assigned to GOOGLE LLC.

THIRTY-FIFTH: According to your letter of May 12, 2021, the total number of users in the period from April 1, 2020, to March 31, 2021, of the website ***URL.1 as well as other versions of the page aimed at other countries is, for example, in the German market 1,623,842 visits, in the Spanish market 13,344,019 visits, and in the French market 12,682,624 visits. And the total number of users in the described period is 72,648,400 visits.

THIRTY-SIXTH: According to your letter of May 12, 2021, the version used by EDREAMS was Google Analytics 360, since July 2012.

THIRTY-SEVENTH: According to your letter of May 28, 2021, the establishments of EDREAMS that process personal data in the context of the present complaint are Germany, Spain, France, Italy, United Kingdom.

THIRTY-EIGHTH: According to your letter of May 28, 2021, (...).

THIRTY-NINTH: On October 27, 2021, it is verified that in the plenary session of the European Data Protection Committee dated September 2, 2020, it was decided to create a working group to ensure a coherent approach among European data authorities to manage the 101 complaints from NOYB, which concern similar issues (the complainant has visited a website of a data controller while logged into their Google or Facebook account, linked to their email address. And the data controller had embedded code from Google or Facebook services, which had transferred their personal data to the

United States, without having a legal basis for it).

FORTIETH: According to the diligence of October 27, 2021, GOOGLE LLC sent to the Austrian data protection authority a document dated April 9, 2021, which it shares with the other authorities through the Working Group for the 101 complaints of NOYB in the context of the CJEU ruling Schrems II (“101 taskforce”, hereinafter, working group TF101). The document in question contains the following information and statements (from its unofficial translation from English):

(...).

FORTY-FIRST: As of November 2, 2021, the website ***URL.1 is also available for the following EEA countries: Czech Republic, France, Italy, Romania, Germany, Greece, Netherlands, Poland, Hungary, Portugal.

FORTY-SECOND: As of November 2, 2021, at the URL ***URL.15, there was the existence of FISA (Foreign Intelligence Surveillance Act) and NSL (National Security Letters) requests directed to GOOGLE regarding user information.

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FORTY-THIRD: On March 24 and 25, 2022, the description of Google Analytics located at the URLs ***URL.16 and ***URL.17 stated, among other information, that the cookies _ga and _gid were used to distinguish users and that the parameter “sr” referred to screen resolution.

And that, by executing tracert commands to various IP addresses assigned to GOOGLE LLC in relation to the domain google-analytics.com, the RTT times are too low for said destination IPs to be geographically located in the United States.

THIRD: On August 30, 2023, the appellant submitted a request for reconsideration to this Agency, fundamentally arguing that there has been a violation of the right to defense, with an unjustified denial of the evidentiary period. Furthermore, it considers that the sanctioning resolution is inconsistent and lacks the necessary motivation, and that the imposed sanction has unlawful effects and impossible content. Lastly, it is alleged that there is a lack of object in the sanctioning procedure and of the subjective element and culpability.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD).

II

Response to the allegations presented in the request for reconsideration

In relation to the allegations made by the appellant in the request for reconsideration, a response is provided to them according to the order presented by EDREAMS:

“FIRST.- Violation of defense rights. Unjustified denial of the evidentiary period.”

According to EDREAMS, this Agency has generated a situation of defenselessness for EDREAMS by unjustifiably delaying access to the File, by unjustifiably limiting the deadlines for the submission of allegations, and, moreover, by not agreeing to open the evidentiary period expressly requested by EDREAMS on several occasions.

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The following is a proper response to these arguments. Regarding the rejection of the evidence request made by EDREAMS, it ignores the provisions set forth in point 10 of the "Google Ads Data Processing Terms," according to which the data controller has agreed that Google may store and process personal data of the customer (in this case, personal data of the claimant) in any country where Google or any of its data processors maintain facilities. When this information is collected, it is transmitted to Google Analytics servers. Specifically, the document in the file sent by Google LLC dated April 9, 2021, in the last paragraph of the response to question 8, states that all data collected through Google Analytics is hosted in the United States. Therefore, the data collected on the website "****URL.1" through Google Analytics is transferred to the United States.

Having documented the international transfer of personal data to the United States, it was not necessary to conduct a technical test of a fact that has been acknowledged by Google, which is that, ultimately, all data processed by Google Analytics is hosted in the U.S. According to the provisions of Article 77.3 of the LPACAP, "the instructor of the procedure may only reject the evidence proposed by the interested parties when they are manifestly inappropriate or unnecessary, by means of a reasoned resolution," thus, there is no "unlimited" right to the practice of evidence, as EDREAMS intends, but it can be rejected in a reasoned manner, as was done in the resolution, in the terms that have been reiterated in this paragraph.

Regarding what EDREAMS refers to as "unjustified delay in access to the File," the manner of delivering the file was motivated by the technical impossibility of making it available to EDREAMS through the electronic headquarters, due to the size of the document, for which it was decided to send a copy of the file in electronic format via courier. It was the intention of this Agency that EDREAMS have access to the copy of the file as soon as possible, for which the personnel responsible for its dispatch confirmed by phone the address to which it should be sent with personnel from EDREAMS who, at that time, was listed in this Agency's database, to whom the shipment was sent on December 12, 2022.

Despite the aforementioned verification, as stated in the receipt issued by the courier company in the file, on December 13, 2022, when there were still 6 business days remaining until the deadline for submitting allegations, the courier from the courier company could not deliver the shipment for the following reason: "Unknown recipient at the delivery address." After this first delivery attempt, contact was made again with EDREAMS to confirm the address. Therefore, the delay in the delivery of the copy of the file is due to EDREAMS not having notified this Agency of the change of address.

On December 15, 2022, personnel from EDREAMS appeared before this Agency, when there were four business days remaining until the last day for submitting allegations. This representation of EDREAMS was provided with a copy of the file in person, and it could not be provided two days earlier when they appeared before this Agency without proving such representation. Without a doubt, this

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This circumstance was also a cause of the delay in the delivery of the copy of the file.

In any case, since December 15, 2022, the day on which the copy of the file was delivered, EDREAMS has had a sufficiently ample period to review the documents contained in the file; proof of this, by way of example, is the expert report that it attaches to its allegations (attached document No. 3), where technical issues of some of the documents in the file are analyzed over 134 pages.

Finally, regarding what EDREAMS refers to as "unjustified limitation" of the extension of the deadline for submitting allegations to the proposed resolution, Article 32.1 of the LPACAP states that "The Administration, unless otherwise provided, may grant... an extension of the established deadlines...", so it is not obligated to do so. In the present case, the deadline for allegations to the initiation agreement was extended by five working days, the maximum period allowed by Article 32.1 of the LPACAP, considering that the initial period was ten working days, and an additional two working days were granted for the deadline for allegations to the proposed resolution, ensuring that EDREAMS has

more than enough time to present its allegations.

For all the above reasons, this allegation is dismissed.

“SECOND.- Lack of motivation of the Sanctioning Resolution.”

In this section, EDREAMS reiterates the lack of evidence of the facts constituting the infringement, without this Agency having been able to technically demonstrate that international data transfers to the U.S. occur. EDREAMS believes that the privacy configuration with which it uses the Google Analytics service prevents international data transfers. Furthermore, according to EDREAMS, the contested resolution imposes a future prohibition on processing without having conducted a risk analysis of how the risk currently stands. Lastly, other arguments already presented in the previous sections are repeated, such as the absence of evidence in the procedure and the privacy configuration in the use of Google Analytics by EDREAMS, which have already been addressed.

In response to this allegation, first of all, it should be clarified regarding the assessment made by the Inspector during the prior investigative proceedings (page 5373 of the file) to which EDREAMS refers in its appeal for reconsideration that, regardless of whether this Agency has been able to technically demonstrate that international data transfers to the U.S. occur, these have been documented, as reasoned in the response to EDREAMS' allegation in the previous section, which refers to point 10 of the “Google Ads Data Processing Terms,” according to which the data controller has agreed that Google may store and process personal data of the client in any country where Google or any of its data processors maintain facilities and that, specifically, the document in the file sent by Google LLC dated April 9, 2021, in the last paragraph of the response to question 8,

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Google states that all data collected through Google Analytics is hosted in the United States.

It has already been justified in the contested resolution that the configuration of Google Analytics used by EDREAMS on its website, without Google Signal enabled, did not prevent the processing of personal data. In the document dated April 9, 2021, which GOOGLE LLC sent to the Austrian data protection authority, in which GOOGLE LLC responds to a series of questions posed by the Austrian authority regarding a claim substantially similar to that of the present procedure, and to which EDREAMS has had access as it is incorporated into the file; in point number 9 (page 5234 of the file), the following is stated: (unofficial translation):

“In the present claim, the claiming party was logged into their Google account when visiting the specific website of the site owner. Does the implementation of Google services (including Google Analytics) allow Google to receive information that a specific user of a Google account has visited a specific website? If so, please describe how and what information about the Google account user is collected. No, the implementation of Google Analytics as such does not allow Google to receive the information that a specific Google user has visited a specific website. The implementation of Google Analytics on a website allows Google to receive the information that a specific Google user has visited a specific website only if the following additional conditions are met:

(1) The user has activated web activity and in their Google account and, in addition, has visited the website;

(2) The user has opted to include the activity of businesses that use Google services;

(3) The user has activated ad personalization;

(4) and the user is logged into their Google account in the same browser while visiting the website.

If Google Signals (see our response to question 6(ii)) is enabled on that website, Google will then be able to link the user's visit to that website with the activity of the Google account in the user's web and app activity.”

As can be seen, again from Google's own response, it is not necessary to have Google Signals enabled for Google to receive information from a Google user if the four transcribed conditions are met, being an optional feature whose deactivation does not prevent Google from receiving information that a specific user of a Google account has visited a specific website. In response 6 (ii), Google

states: “Google Signals is an optional feature of Google Analytics that, when activated, adds supplementary reports based on data from Google users who have activated ad personalization in their account.”

On the other hand, EDREAMS regarding the collection of IP Addresses: “IP addresses would be anonymized at the time of collection and such anonymization,

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as confirmed by Google, occurs within the European region for users browsing from the EEA.

Consequently, the data that could potentially be transferred to the U.S. are not personal data, but have undergone a robust and irreversible anonymization process.” Neither Google nor EDREAMS has credibly demonstrated that IPs are anonymized within the territory of the European Union.

We may accept Google's claims that IPs are anonymized within the territory of the EU, just as we have previously reproduced how they handle cookies and their use to distinguish users, but they could be subject to processing once collected. For example, in Google Analytics, according to the document “Privacy and Data in the EU” from Google (available at

https://support.google.com/analytics/answer/12017362?hl=es&ref_topic=2919631), “...IP address data is used solely to obtain geolocation data and is discarded immediately,” meaning that information that can be provided by the IP is indeed used before anonymization. EDREAMS cites an email from a Google employee as proof that IPs are always anonymized in the territory of the European Union, but there is no technical evidence to support this.

Consequently, in accordance with what is more broadly developed in Legal Basis IV of the contested resolution, particularly in its point 2, “On the qualification of the data subject to processing as personal data,” EDREAMS conducts international transfers of personal data through Google Analytics.

Finally, as expressed by EDREAMS, the contested resolution did not take into account the risk analysis of how the risk stands today. However, the modification of the regulatory framework regarding data protection that has occurred in the U.S., which took place after the events in question, cannot be applied to the present procedure.

At the time the events subject to the claim occurred, the grounds of the CJEU ruling in case C-311/18 (Schrems II) were applicable, which declared invalid the Commission's Implementing Decision (EU) 2016/1250 of July 12, 2016, on the adequacy of the protection provided by the EU-U.S. Privacy Shield. In paragraphs 184 and 185 of this ruling, it is established: “Therefore, it is evident that neither Article 702 of FISA nor E.O. 12333, interpreted in relation to PPD-28, meet the minimum requirements established by Union law regarding the principle of proportionality, so that it cannot be considered that the surveillance programs based on those provisions are limited to what is strictly necessary.

In these circumstances, the limitations on the protection of personal data arising from the internal regulations of the United States regarding access to and use by U.S. authorities of data transferred from the Union to the United States, which the Commission evaluated in the EP Decision, are not

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regulated according to requirements substantially equivalent to those required under Union Law, in Article 52, paragraph 1, second sentence, of the Charter.” Google LLC (as the importer of data to the U.S.) must be classified as a provider of electronic communications services in the sense of paragraph (b) of point 4 of Article 1881 of Title 50 of the United States Code and, therefore, is subject to surveillance by U.S. intelligence services in accordance with paragraph (a) of Article 1881 of Title 50 of the United States Code (“FISA 702”). Therefore, Google LLC has the obligation to provide personal data to the U.S. government when requested in accordance with paragraph (a) of Article 1881 of Title 50 of the United States Code (FISA 702). As can be seen in Google's Transparency Report, Google

LLC is regularly subject to access requests from U.S. intelligence services. The report can be consulted at: <https://transparencyreport.google.com/user-data/us-national-security?hl=en>
Consequently, the international data transfers carried out by EDREAMS using the Google Analytics tool at the time of the claim did not comply with the provisions of Article 44 of the GDPR, and the application of the new adequacy decision "EU-U.S. Data Privacy Framework" cannot remedy this. For all the above reasons, this allegation is dismissed.

"THIRD.- Inconsistency of the Sanctioning Resolution. Sanction with unlawful effects and impossible content."

EDREAMS argues that it is inconsistent that the contested resolution does not analyze the new legal framework of the U.S. and the Adequacy Decision of the European Commission because it is not automatic nor applicable to the present procedure, but at the same time, precisely in the sanction imposed, reference is made to the current moment and to the adaptation to the applicable regulations that necessarily includes the new legal framework of the U.S. and the Adequacy Decision. According to EDREAMS, the sanction causes it disproportionate and unfair harm, and is unlawful because it would be prohibiting future treatments that are lawful. Finally, EDREAMS believes that the imposed sanction has impossible content since it would be forcing EDREAMS to impose and modulate a service that is not its own but that of a third party (Google), and therefore does not fall under its sphere of control.

In response to the allegation regarding the new legal framework of the U.S. and the new Adequacy Decision "EU-U.S. Data Privacy Framework," as this Agency stated in the contested resolution and justifies again in the previous allegation, for the purposes of determining responsibility for the commission of the infringement, the current legal framework is not applicable, but rather the legal regime in force at the date of the facts constituting the infringement, particularly as established by the CJEU in the judgment in case C-311/18 (Schrems II), which declared invalid the Commission's Implementing Decision (EU) 2016/1250 of July 12, 2016, on the adequacy of the protection provided by the EU-U.S. Privacy Shield.

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Given that Google LLC has the obligation to provide personal data to the Government of the United States when requested in accordance with subsection (a) of Section 1881 of Title 50 of the United States Code (FISA 702), as can be seen in its Transparency Report (<https://transparencyreport.google.com/user-data/us-national-security?hl=en>), the doctrine established by the CJEU in the aforementioned ruling is fully applicable.

On the other hand, in order to ensure that international data transfers to the U.S. comply with the GDPR, the approval of the Commission's Implementing Decision dated July 10, 2023, in accordance with Regulation (EU) 2016/679 of the European Parliament and of the Council on the adequate level of protection of personal data in the "EU-U.S. Privacy Shield," establishes in its Annex I, "Principles of the EU-U.S. Privacy Shield Framework issued by the U.S. Department of Commerce," the following (unofficial translation):

"2. In order to rely on the EU-U.S. Privacy Shield Framework for making transfers of personal data from the EU, an organization must self-certify its adherence to the Principles to the Department (or its designated person). While organizations' decisions to enter the EU-U.S. Privacy Shield Framework are entirely voluntary, effective compliance is mandatory: organizations that self-certify to the Department and publicly declare their commitment to adhere to the Principles must fully comply with the Principles...

3. ... The benefits of the EU-U.S. Privacy Shield Framework are assured from the date the Department places the organization on the Privacy Shield List."

However, at the time the resolution was issued, Google had not self-certified its adherence to the Principles of the EU-U.S. Privacy Shield Framework, so it could not be considered that international data transfers were made with sufficient safeguards and under the new Adequacy Decision.

The contested resolution cannot be considered "unlawful," when what it orders is precisely compliance with the current regulations, that is, adapting the data processing activity of the Google Analytics service to the provisions of Articles 44 and following of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, particularly by ceasing the international data transfer until it is demonstrated that the Google Analytics service complies with the aforementioned provisions of the Regulation. Compliance with this mandate was not demonstrated before the resolution was issued in the sanctioning procedure, and the adaptation made subsequently does not invalidate it; on the contrary, it implies that the imposed measure has been complied with.

On the other hand, the mandate included in the contested resolution does not have an impossible content. Let us remember that, regardless of the fact that the current Standard Contractual Clauses (Google Ads and Measurement: Standard Contractual Clauses (Module 3: Processor to Processor)) designate Google Ireland as the data exporter. EDREAMS, as the data controller, assumes, along with the other...

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conditions for contracting the services of Google LLC, the agreements related to data processing, and the Standard Contractual Clauses that allow data to be transferred to Google LLC, based in the United States. Specifically, EDREAMS assumes point 10 of the "Google Ads Data Processing Terms," whereby the data controller has agreed that Google may store and process personal data of the customer (i.e., personal data of the claimant and any user visiting the relevant website) in any country where Google or any of its "sub-processors" maintain facilities, including the U.S., as stated by Google LLC in the document dated April 9, 2021. Consequently, by contracting the services of GOOGLE, accepting its contracting conditions, EDREAMS, as the data controller, is responsible for taking the necessary measures to ensure that the data of those visiting its website is processed in accordance with the provisions of the GDPR.

For all the above reasons, this allegation is dismissed.

"FOURTH.- Lack of object of the sanctioning procedure."

In this allegation, a summary is made of what has already been argued in the preceding allegations: Application of the new EU-U.S. Data Privacy Framework Adequacy Decision, there are no international data transfers as they cannot be technically demonstrated and due to the privacy configuration of Google Analytics selected by EDREAMS (IP anonymization and the deactivation of Google Signals). A novel argument is included: The European Data Protection Board has confirmed "that all the guarantees implemented by the U.S. government apply to all data transfers to the U.S. regardless of the transfer mechanism used" and, in its absence, "even if the EU-U.S. Privacy Framework were not applicable, the European Commission and the EDPB have clearly confirmed that the Adequacy Decision is fully applicable to all transfers to the U.S."

In response to this argument, it should be emphasized that the adoption by the Commission of the EU-U.S. Data Privacy Framework Adequacy Decision merely confirms that the international data transfers carried out by EDREAMS prior to the approval of that decision constituted a violation of the rights and freedoms of European citizens regarding data protection, due to the indiscriminate access to their personal data by U.S. intelligence services, from the moment the aforementioned Adequacy Decision is justified based on the new data protection guarantees established by the U.S. Among these guarantees are the limitation of access by U.S. intelligence services to the personal data of EU citizens to what is necessary and proportionate, and the establishment of a Data Protection Review Court, to which EU citizens will have access.

Well, none of these guarantees existed at the time of the events referred to in the contested resolution, when EDREAMS, through its website, and due to the fact that

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operating in other Member States of the Union, transferred personal data of citizens of the European Union to the U.S. in violation of the applicable regulatory framework according to the ruling of the CJEU in case C-311/18 (Schrems II), which declared invalid the Commission's Implementing Decision (EU) 2016/1250 of July 12, 2016, on the adequacy of the protection provided by the EU-U.S. Privacy Shield.

In this ruling, the Court considered that the requirements of U.S. national law, and in particular, some programs that allowed U.S. public authorities to access personal data transferred from the EU to the U.S. for national security purposes, imposed limitations on the protection of personal data that were not circumscribed in a way that provided substantially equivalent guarantees to those required under Union law, and that this legislation did not provide any judicial remedy against U.S. authorities for data subjects.

However, EDREAMS argues in its appeal for reconsideration that there was no infringement, and that its international data transfers to the U.S. have always complied with the legal framework, even prior to the new Adequacy Decision, through which the Commission concludes the existence of guarantees in the U.S. that ensure a level of protection equivalent to that of the EU for European citizens, and considers that the issues clarified by the CJEU in the Schrems II ruling have been addressed. This reasoning, whereby EDREAMS defends the validity of its actions regardless of the applicable legal framework, is entirely incongruent. Furthermore, it should be noted that, among other arguments, EDREAMS has defended ideas such as that the data sent were not personal data, and has even questioned whether the data is sent to the U.S., when this has been acknowledged by Google itself. Consequently, the validity of the contested resolution is upheld and the necessity of the mandate established therein to "adapt the data processing activity of the Google Analytics service to the provisions of Articles 44 and following of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, in particular by ceasing the international data transfer until it is demonstrated that the Google Analytics service complies with the aforementioned provisions of the Regulation" is maintained. The existence of new circumstances that allow previously non-compliant processing under the GDPR to now be compliant does not prevent attributing responsibility to EDREAMS for the commission of the infringement, nor does it invalidate the imposed order, without prejudice to the fact that, once the facts and legal grounds of the sanctioning resolution are acknowledged, and in accordance with the measures adopted, it allows for the consideration that EDREAMS has complied with the measure imposed in the contested resolution.

Furthermore, EDREAMS has not justified that it has signed with Google, as the data processor, the standard contractual clauses adapted to Decision (EU) 2021/914 of June 4, 2021, regarding standard contractual clauses for the transfer of personal data to third countries, which, together with the guarantees provided in the EU-U.S. Data Privacy Framework, would allow for the consideration that the international data transfer to the U.S. is in accordance with data protection regulations.

For all the above reasons, this allegation is dismissed.

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"FIFTH.- Lack of subjective element and culpability."

As EDREAMS has already stated in its Written Submissions, the requirement of culpability of the subject who engages in the unlawful conduct is necessary for the imposition of an administrative sanction.

In response to this allegation, as already mentioned in the response to the Fourth allegation of the appeal for reconsideration, EDREAMS acknowledges point 10 of the "Terms of Data Processing of Google Ads," whereby the data controller has agreed that Google may store and process personal data of the customer (i.e., personal data of the claimant and any user visiting the website in question) in any country where Google or any of its "sub-processors" maintain facilities, including the U.S.,

regardless of whether the Standard Contractual Clauses have been modified from those in effect at the time of the events subject to the claim, attributing the status of exporter to Google Ireland. Thus, the actions of Google LLC are confined to what is stipulated and, on behalf of EDREAMS, carrying out the processing of the personal data necessary for the proper provision of the service, which determines the administrative responsibility of the data controller.

For all the above reasons, this allegation is dismissed.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by VACACIONES EDREAMS, S.L. against the resolution of this Spanish Agency for Data Protection issued on July 26, 2023, in file EXP202306257.

SECOND: TO NOTIFY this resolution to VACACIONES EDREAMS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that certifies the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

180-111122

Mar España Martí

Director of the Spanish Agency for Data Protection

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